

Defendant Ramanujan Group LLC's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure, section 430.41. The Court continues the demurrer hearing on its own motion to **9:00 a.m., Wednesday, March 18, 2026, in Department 16.**

Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.

(Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355, fn. 3.)

Defendant Ramanujan Group LLC shall file a Code of Civil Procedure section 430.41 meet and confer declaration by **Wednesday, February 25, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference." (Code Civ. Proc., § 430.41, subd. (a).)

13. 9:00 AM CASE NUMBER: C25-00261

CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S 1ST AMENDED COMPLAINT
FILED BY: RAMANUJAN GROUP LLC**

TENTATIVE RULING:

Defendant Ramanujan Group LLC's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure, section 435.5. The Court continues the motion to strike hearing on its own motion to **9:00 a.m., Wednesday, March 18, 2026, in Department 16.** (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [discussing trial court's discretion to continue hearings in order to allow for parties to meet and confer].) Defendant Ramanujan Group LLC shall file a Code of Civil Procedure section 435.5 meet and confer declaration by **Wednesday, February 25, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference. . ." (Code Civ. Proc., § 435.5, subd. (a).)

14. 9:00 AM CASE NUMBER: C25-01017

CASE NAME: STEVEN KENT VS. RICHARD KENT

***HEARING ON MOTION IN RE: COSTS OF SERVICE UNDER CCP 415.30
FILED BY: KENT, STEVEN JAMES**

TENTATIVE RULING:

Summary

Plaintiff Steven Kent's Motion to recover Costs of Service under Cal. Code of Civ. Proc. § 415.30 from Defendant Richard Kent is **denied** without prejudice.

Background

On October 17, 2025, Plaintiff Steven Kent ("Plaintiff") filed a Motion to Recover Costs of Service

pursuant to Cal. Code of Civ. Proc. § 415.30 against Defendant Richard Kent (“Defendant”). The Motion was supported by a Notice, Declaration of Lonnie Kocontes. Plaintiff seeks to recover \$400.00 in costs for personal service. However, no receipts, invoices or reasonable objective proof that he paid \$400.00 to a process server is included with Plaintiff’s moving papers.

An opposition was filed by Defendant through counsel Carolyn Cain, Esq. Defendant denies receiving mail copies of the summons, complaint and acknowledgment form, but admits that he was personally served with summons and first amended complaint on September 30, 2025. Defendant further argues that the alleged \$400.00 in costs incurred by plaintiff is excessive, based on Counsel’s routine practice of retention of process servers.

The reply brief filed by Plaintiff Counsel on January 28, 2026 contains no further proof of actual costs incurred.

Analyses

The Court acknowledges that Cal. Code of Civ. Proc. § 415.30 requires this Court to award costs of service if a litigant, upon service by mail, fails to complete and return an acknowledgement form. Indeed, section (d) of Cal. Code of Civ. Proc. § 415.30 states:

(d) If the person to whom a copy of the summons and of the complaint are mailed pursuant to this section fails to complete and return the acknowledgement form set forth in subdivision (b) within 20 days from the date of such mailing, the party to whom the summons was mailed shall be liable for reasonable expenses thereafter incurred in serving or attempting to serve the party by another method permitted by this chapter, and, except for good cause shown, the court in which the action is pending, upon motion, with or without notice, shall award the party such expenses whether or not he is otherwise entitled to recover his costs in the action.

Applied here, Plaintiff does not prove, by a preponderance of the evidence, that he incurred \$400.00 in costs to effectuate personal service on Defendant. While the Declarations of the process server and Plaintiff’s motion documents contain such representation, no objective, verifiable proof of costs accompanies the motion. Plaintiff has not submitted a receipt, invoice, statement by the process server, or proof of payment that supports the \$400 claim for costs. Moreover, the Court finds reasonable Defendant’s argument that such costs exceed the normal costs for process service.

Ruling

Plaintiff’s Motion for reimbursement of costs of service in the amount of \$400 is **denied** without prejudice. Defendant’s counsel shall prepare a proposed order conforming to this ruling and e-file it with the Court no later than five (5) days after the date of the hearing of this motion.

15. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
***HEARING ON MOTION IN RE: SETTING THE REASONABLE DEPOSITION FEE FOR DR. ROBERT ROVNER**
FILED BY: SILVA, JULIANO